

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicole Weinstock	Team: Team # 3	CCRB Case #: 201002309	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/19/2010 10:50 AM	Location of Incident: East 138th Street between Alexander and Lincoln Avenues		18 Mo. SOL 8/19/2011		Precinct: 40
Date/Time CV Reported Fri, 02/19/2010 2:46 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/19/2010 2:46 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Rickli	30141	931037	PBBX TF
2. POM Robert Rodriguez	14441	926015	PBBX TF

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Abuse: PO Robert Rodriguez threatened § 87(2)(b) with the use of force.	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On February 19, 2010, § 87(2)(b) filed this complaint with the CCRB via telephone (encl. 9-10).

On February 19, 2010, at approximately 10:50 a.m., § 87(2)(b) and his son, § 87(2)(b) were pulled over by PO Brian Rickli and PO Robert Rodriguez while driving two different vehicles on East 138th Street between Alexander and Lincoln Avenues in the Bronx. The following allegations resulted:

- **Allegation A-Abuse of Authority:** PO Robert Rodriguez threatened § 87(2)(b) with the use of force. § 87(2)(g) it is recommended that **Allegation A** be **unsubstantiated**.
- § 87(4-b) § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) year old Hispanic male, § 87(2)(b), with black hair and brown eyes. § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on March 4, 2010 (encl. 12-14). On February 19, 2010, at approximately 10:50 a.m., § 87(2)(b) was driving a 2008 silver Dodge Charger while § 87(2)(b) was driving a 2008 black Chrysler 300. § 87(2)(b) was driving in front of § 87(2)(b) northbound on East 138th Street in the Bronx. They were stopped at a traffic light on East 138th Street and 3rd Avenue when § 87(2)(b) noticed a patrol car driving southbound on East 138th Street. The officers made a U-turn and pulled up behind § 87(2)(b). The father and son were pulled over on East 138th Street between Alexander and Lincoln Avenues.

PO Brian Rickli approached § 87(2)(b)'s front driver's side window while PO Robert Rodriguez approached § 87(2)(b)'s vehicle. The names of the officers were obtained from the nameplates on their uniforms. § 87(2)(b)

PO Rickli stated that § 87(2)(b) could leave. § 87(2)(b) explained that his son was the driver of the other vehicle. PO Rickli allowed § 87(2)(b) to go to his son.

§ 87(2)(b) exited his car and walked to § 87(2)(b)'s car. PO Rodriguez was standing at the driver's side rear door and § 87(2)(b) stopped at the driver's door. § 87(2)(b) heard PO Rodriguez state, "You know, I could put my piece against the window and shoot whoever is back there, including your mother, father, grandmother, whoever is back there." § 87(2)(b) opened his door, but did not exit the car, and told PO Rodriguez that he could not make that statement. § 87(2)(b) told PO Rodriguez that he could not say that.

PO Rodriguez replied that § 87(2)(b) could not tell him how to do his job. § 87(2)(b) stated two or three times to PO Rodriguez, “You’re not allowed to say that.” At some point, § 87(2)(b) asked PO Rodriguez for his shield number. PO Rodriguez turned his body away from § 87(2)(b) as if to hide his shield number then stated, “14441.”

PO Rodriguez went to the patrol car and returned with a tint meter. PO Rodriguez instructed § 87(2)(b) to roll the windows down on his car. He complied. PO Rodriguez used the tint meter to check all of the windows with § 87(2)(b) behind him, observing the meter readings. § 87(2)(b) stated that for all of the windows on his car, the meter read 30. PO Rodriguez then checked the windows on § 87(2)(b) s car. § 87(2)(b) followed PO Rodriguez for this as well and observed the meter read 30 on the front windows and 35 on the rear windows of this car.

PO Rodriguez was getting into the patrol car and § 87(2)(b) was standing next to § 87(2)(b) s car when PO Rodriguez requested the license and registration for both males. § 87(2)(b) and § 87(2)(b) provided their information. § 87(2)(b) stood outside of PO Rodriguez’s door, approximately two to four feet into the street, observing PO Rodriguez write the summonses. PO Rodriguez asked him to move so that he would not be struck by a car. § 87(2)(b) explained that he wanted to observe PO Rodriguez. PO Rodriguez continued to write the summonses while § 87(2)(b) stood there watching and § 87(2)(b) was inside of his car.

When PO Rodriguez finished writing the summonses, he got out of the car and handed § 87(2)(b) one summons and § 87(2)(b) six summonses. § 87(2)(b) originally stated that he asked why he was getting six summonses and that PO Rodriguez replied that he should read the back of the summonses. § 87(2)(b) continued to argue about the summonses. PO Rodriguez instructed the males to just leave and stated that whenever he saw them, he would stop them. § 87(2)(b) later stated that he simply took the summonses and stated that he would fight them. PO Rodriguez walked away. Everyone got into their respective vehicle and left.

Victim: § 87(2)(b)

- § 87(2)(b) year old Hispanic male, § 87(2)(b), with brown hair and brown eyes.
§ 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on March 4, 2010 (encl. 24-25).
§ 87(2)(g)

On the date of the incident, PO Brian Rickli and PO Robert Rodriguez, who were identified through investigation, stopped the father and son. PO Rodriguez approached § 87(2)(b) s rear driver’s side window. § 87(2)(b) originally stated that PO Rodriguez immediately stated, “You know I can put my piece against your back window and shoot anyone that is in there. I can shoot your mother or grandmother. I don’t care who is in there, I can shoot them.” § 87(2)(b) later stated that PO Rodriguez requested his license and registration then made this statement. Later, § 87(2)(b) stated that PO Rodriguez instructed him to get out of the car and he complied. § 87(2)(b) then stated that he got out of the car when PO Rodriguez made the statement about using his gun.

PO Rickli was still speaking with § 87(2)(b) when this comment was made. § 87(2)(b) then immediately stated that PO Rickli and his father were approaching his car when this was stated and they were two to three feet away. § 87(2)(b) repeated to his father what PO Rodriguez had stated and § 87(2)(b) instructed § 87(2)(b) to get back into the car.

NYPD Statements:

Subject Officer: PO ROBERT RODRIGUEZ

- § 87(2)(b) year old Hispanic male, § 87(2)(b), with brown hair and brown eyes.
- On the date of incident, assigned to Patrol Borough Bronx Task Force, as traffic enforcement. He worked from 7:25 a.m. to 12:35 a.m. with PO Brian Rickli in uniform and marked patrol car 4567.

Memo Book

PO Rodriguez's memo book is summarized as follows: At 10:50 a.m., there was a car stop involving a grey dodge, with license plate § 87(2)(b) for window tints and a black Chrysler with license plate § 87(2)(b). After a warning and giving the serious, dangerous reasons for tinted windows, the driver of the Chrysler became belligerent and combative. PO Rodriguez walked to the patrol car but was pursued by the defendant where he continued to be belligerent, therefore making a warning and admonishment was no longer possible. The defendant remained in the right lane of traffic, intentionally blocking traffic. PO Rodriguez informed the defendant, "Sir, you are being ordered by the police to go back and remain in your vehicle." two times. Defendant responded, "It's ok, I'm gonna stay here." Issued summonses number § 87(2)(b) to the Chrysler and § 87(2)(b) to the Dodge (encl. 33-35).

Summons

On February 19, 2010, at 10:50 a.m., on East 138th Street and 3rd Avenue in the Bronx, PO Rodriguez issued § 87(2)(b) summons number § 87(2)(b) for § 87(2)(b), § 87(2)(b) for § 87(2)(b) and § 87(2)(b) § 87(2)(b), § 87(2)(b) and § 87(2)(b) for § 87(2)(b). At the same time and location, PO Rodriguez issued § 87(2)(b) summons number § 87(2)(b) for § 87(2)(b) (encl. 36-37).

CCRB Statement

PO Robert Rodriguez was interviewed at the CCRB on April 16, 2010 (encl. 38-40). PO Rodriguez was driving the patrol car eastbound on 138th Street when PO Rickli and PO Rodriguez observed two vehicles that had heavily tinted windows. PO Rodriguez stated that the officers could not see inside of the vehicles and this was the only reason that the cars were stopped. He explained that New York State allows for a minimum of seventy percent of light has to get into the vehicle, or a reading of 70 or higher on a tint meter. The officers pulled over both vehicles. PO Rodriguez spoke with the driver of the vehicle parked closest to the officers, § 87(2)(b) while PO Rickli spoke with the driver of the vehicle parked farthest from the officers, § 87(2)(b).

PO Rodriguez approached § 87(2)(b)'s vehicle and immediately instructed him to lower all of his windows as PO Rodriguez could not see into the vehicle. § 87(2)(b) complied and had a calm demeanor at this point. PO Rodriguez then checked the windows on the car using a tint meter. PO Rodriguez recalled that each window registered between ten and twelve percent transparency. He noted that on this date, he calibrated his tint meter before and

after each vehicle stop. PO Rodriguez then requested § 87(2)(b)'s pedigree information, which was provided. PO Rodriguez then made a statement to § 87(2)(b) along the lines of, "This is an extremely dangerous situation. You're putting yourself in a situation that you can avoid. We had a police officer fatality a couple of years ago. I'm sure you heard about it on the news. This is something that is being very heavily enforced now, especially in the Bronx. If cops can't see in, they're going to protect themselves. It is possible that someone is going to take their firearm and point it in your direction for their safety if they don't know what is going on. They don't know what is behind that glass." PO Rodriguez explained that he did not recall his exact wording but he was simply trying to appeal to § 87(2)(b) to remove the tints to avoid a potentially bad situation. PO Rodriguez denied stating, "Do you know I could put my piece against your window and shoot whoever is back there. Including your mother, father, grandmother and whoever is back there." § 87(2)(b) was understanding of this at first, but then became upset. While this was being explained, § 87(2)(b) approached PO Rodriguez and § 87(2)(b).

§ 87(2)(b) was belligerent and asked if PO Rodriguez was going to point a gun at his son. § 87(2)(b) explained that the gun was going to be pointed at his mother. PO Rodriguez explained to the father and son that he was simply trying to explain the dangers of having tinted windows and how someone could react. He explained this at least three times. § 87(2)(b) was standing in the right lane of traffic, in a busy intersection, causing cars to drive around him. § 87(2)(b) was screaming, "That's fucked up. You should apologize. You're acting like an asshole." PO Rodriguez observed that PO Rickli had § 87(2)(b)'s information. PO Rodriguez instructed § 87(2)(b) to wait in his car for the officers. § 87(2)(b) did not comply and continued to curse at PO Rodriguez. PO Rodriguez checked § 87(2)(b)'s windows with his tint meter.

The officers returned to their car with § 87(2)(b) following them. At this point, § 87(2)(b) exited his vehicle, without being instructed to do so, and walked to the patrol car. PO Rodriguez instructed § 87(2)(b) and § 87(2)(b) to return to their vehicles. § 87(2)(b) complied, but § 87(2)(b) did not. § 87(2)(b) stated that he would wait where he was. PO Rodriguez stated, "Sir, you are being ordered by the police. It is not a request. Sit in your car." § 87(2)(b) remained in traffic, with his arms folded across his chest. PO Rodriguez instructed him at least three times to get back to his car but he did not comply.

PO Rodriguez issued § 87(2)(b) four summonses for § 87(2)(b) one for § 87(2)(b) and one for § 87(2)(b). PO Rodriguez issued § 87(2)(b) one summons for § 87(2)(b). PO Rodriguez explained that an officer is allowed to test each window and issue one summons per window. He typically does this because when one goes to court, the judge is more likely to lower the fine if there are four summonses instead of one. Also, a person is more likely to remove the violation if he or she received four summonses instead of one. § 87(2)(b) only received one summons because PO Rodriguez believed that he ran out of summonses.

When PO Rodriguez gave the summonses, § 87(2)(b) remained in the street and stated, "It's no problem, I'll take a course. I'm going to make a complaint. This isn't right. You're an asshole." PO Rodriguez never stated that he would continue to pull them over. The officers got back in their car and PO Rodriguez drove away as soon as it was safe to do so.

Subject Officer: PO BRIAN RICKLI

- § 87(2)(b) year old white male, § 87(2)(b), with brown hair and blue eyes.
- On the date of incident, assigned to Patrol Borough Bronx Task Force, the 40th Precinct. He worked from 9:30 a.m. to 6:05 p.m. with PO Robert Rodriguez in uniform and marked patrol car 4567.

Memo Book

PO Rickli did not have any memo book entries regarding this incident (encl. 29-30).

CCRB Statement

PO Brian Rickli was interviewed at the CCRB on April 9, 2010 (encl. 31-32). § 87(2)(g)

On the date of the incident, PO Rodriguez and PO Rickli were working in the 40th Precinct where they were looking for illegally tinted windows. When the vehicles of § 87(2)(b) and § 87(2)(b) were stopped, PO Rickli approached § 87(2)(b)'s vehicle. He explained the reason for stopping them and asked for his pedigree information. § 87(2)(b) was compliant at this point. PO Rickli checked § 87(2)(b)'s windows with a tint meter, which he had calibrated at the beginning of his tour, while § 87(2)(b) remained in his vehicle. He stated that the reading came back as being illegal, but at the time of this interview could not recall what the reading was. PO Rickli then walked over to where PO Rodriguez was speaking with § 87(2)(b). As he did this, § 87(2)(b) exited his vehicle, but not at PO Rickli's instruction. § 87(2)(b) followed PO Rickli to § 87(2)(b)'s vehicle.

PO Rickli could not hear the interaction between § 87(2)(b) and PO Rodriguez when he was at § 87(2)(b)'s car. However, as he got closer he heard PO Rodriguez explaining to § 87(2)(b) the reason for the stop. PO Rodriguez did not state, "You know I can put my gun against your window and shoot anybody in the backseat." PO Rickli clarified that there was no one in the backseat of either vehicle. § 87(2)(b) was out of his car and standing with his arms crossed, looking at PO Rodriguez's waistband. PO Rickli explained that this typically means that a person is looking at an officer's gun and he takes this as a combative stance. He also explained that the officers never instruct people to exit the car during a car stop. PO Rodriguez had § 87(2)(b)'s pedigree and had already checked the tints on the windows at approximately at the same time as when PO Rickli checked § 87(2)(b)'s windows. The officers returned to the patrol car.

PO Rickli explained that as PO Rodriguez was issuing the summonses, it was his decision what summonses to issue. PO Rickli did not recall if § 87(2)(b) or § 87(2)(b) made comments after receiving the summonses or argued about them. PO Rodriguez did not state that he would continue to stop the father and son whenever he saw them.

NYPD Documents

SPRINT

There was no SPRINT report for this incident (encl. 50-52).

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- The next scheduled court date is § 87(2)(b) in Traffic Court for the remaining summonses (encl. 75).

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of April 22, 2010, with regard to the incident (encl. 68-69).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 7).
- This is the first CCRB complaint that § 87(2)(b) has participated in (encl. 8).

Subject Officers CCRB History

- PO Rickli has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 6).
- PO Rodriguez has been a member of the service for ten years and there are no substantiated CCRB allegations against him (encl. 4-5).

Conclusion

Identification of Subject Officers

- PO Rickli acknowledged that he interacted with § 87(2)(b)
- PO Rodriguez acknowledged that he interacted with § 87(2)(b) and § 87(2)(b)

Investigative Findings and Recommendations

Allegation A: PO Robert Rodriguez threatened § 87(2)(b) with the use of force.

§ 87(2)(b) and § 87(2)(b) alleged that PO Rodriguez approached § 87(2)(b) and stated, “You know, I could put my piece against the window and shoot whoever is back there, including your mother, father, grandmother, whoever is back there.” § 87(2)(b) was alone in his vehicle. § 87(2)(b) stated that he heard this comment made as he and PO Rickli approached § 87(2)(b)'s vehicle. PO Rickli stated that PO Rodriguez never made this statement. PO Rodriguez stated that he did not make this statement, but that he was explaining the dangers of having tinted windows to § 87(2)(b). PO Rodriguez stated that an officer could point a gun at § 87(2)(b) not knowing what, or who, was in the vehicle as the windows were so heavily tinted. § 87(2)(g)

it is therefore recommended that **Allegation A be closed as unsubstantiated.**

§ 87(4-b) § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Team: 3

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date